



## **GPC Community UK-GDPR Overview of the General Data Protection Regulation**

*Greenwich Parents & Carers (GPC) is a volunteer-run community group made up of parents and carers of young families living in or local to Greenwich (London, UK). Launched in 2021 during the pandemic lockdown, we provide a digital space for members to connect, share new parenthood experiences, and chat casually about baby/child related topics. As lockdown lifted, we expanded to become a forum to share local announcements and news, and arrange weekly meetups. We now have over 900 members. Our goal is to create a sense of community and celebrate local families.*

The GPC Community will ensure that all personal data that it holds will be:

- ☐ processed lawfully, fairly and in a transparent manner;
- ☐ collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes;
- ☐ adequate, relevant and limited to what is necessary;
- ☐ accurate and kept up to date;
- ☐ kept in a form which permits identification of data subjects for no longer than is necessary;
- ☐ processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage.



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# Data Protection Policy

**Note:** Throughout this document, references to the General Data Protection Regulation (UK-GDPR) are references to the original EU GDPR incorporating the post-Brexit, amendments set out in the Keeling Schedule.

## 1. Introduction to the UK-GDPR

Under the United Kingdom General Data Protection Regulations (UK-GDPR) the GPC Community is required to comply with the UK-GDPR and undertakes to do so.

Throughout this policy document, numbers prefixed by “Art:” in brackets (eg: {Art:5}) refer to the relevant Article(s) in the UK-GDPR, as modified by the Keeling Schedule.

## 2. Definitions

*{Precised from Art:4}*

The definitions of terms used in this policy are the same as the definitions of those terms detailed in Article-4 of the UK-GDPR.

### **Data Subject**

A data subject is an identifiable individual person about whom the GPC Community holds personal data.

### **Contact Information**

For the purposes of this Policy, “Contact Information” means any or all of the person’s:  
full name (including any preferences about how they like to be called);  
full postal address;  
telephone and/or mobile number(s);  
e-mail address(es);  
social media IDs/UserNames (eg: Instagram, Facebook, WhatsApp)

## 3. Principles of the UK-GDPR

*{Precised from Art:5}*

The GPC Community will ensure that all personal data that it holds will be:

- a) processed lawfully, fairly and in a transparent manner in relation to individuals;
- b) collected only for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes;  
further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall not be considered to be incompatible with the initial purposes;
- c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed;



- d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay;
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods insofar as the personal data will be processed solely for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes subject to implementation of the appropriate technical and organisational measures required by the UK-GDPR in order to safeguard the rights and freedoms of individuals; and
- f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organisational measures.

## 4. Lawful Processing

*{Précised from Art:6}*

The GPC Community will obtain, hold and process all personal data in accordance with the UK-GDPR for the following lawful purposes. In all cases the information collected, held and processed will include Contact Information (as defined in 2 above).

### 4.1 By Consent

People who are interested in, and wish to be kept informed of, the activities of the GPC Community.

- a) Subject to the person's consent, this may include information selected and forwarded by the GPC Community on activities by other organisations which are relevant to those of the GPC Community.  
**Note:** this will not involve providing the person's personal data to another organisation.
- b) The information collected may additionally contain details of any particular areas of interest about which the person wishes to be kept informed.
- c) The information provided will be held and processed solely for the purpose of providing the information requested by the person.

### 4.2 By Contract

People who sell goods and/or services to, and/or purchase goods and/or services from the GPC Community.

The information collected will additionally contain details of:

- a) The goods/services being sold to, or purchased from the GPC Community;
- b) Bank and other details necessary and relevant to the making or receiving of payments for the goods/services being sold to, or purchased from the GPC Community.

The information provided will be held and processed solely for the purpose of managing the contract between the GPC Community and the person for the supply or purchase of goods/services.



### **4.3 By Legal Obligation**

People where there is a legal obligation on the GPC Community to collect, process and share information with a third party – eg: the legal obligations to collect, process and share with HM Revenue & Customs payroll information on employees of the GPC Community.

The information provided will be held, processed and shared with others solely for the purpose of meeting the GPC Community's legal obligations.

### **4.4 By Vital Interest**

The GPC Community undertakes no activities which require the collection, holding and/or processing of personal information for reasons of vital interest.

### **4.5 By Public Task**

The GPC Community undertakes no public tasks which require the collection, holding and/or processing of personal information.

### **4.6 Legitimate Interest**

#### ***Volunteers, Including Administrators***

In order to be able to operate efficiently, effectively and economically, it is in the legitimate interests of the GPC Community to hold such personal information on its volunteers and Administrators as will enable the GPC Community to communicate with its volunteers on matters relating to the operation of the GPC Community, eg:

- the holding of meetings;
- providing information about the GPC Community's activities – particularly those activities which, by their nature, are likely to be of particular interest to individual volunteers/Administrators;
- seeking help, support and advice from volunteers/Administrators, particularly where they have specific knowledge and experience;
- ensuring that any particular needs of the volunteer/trustee are appropriately and sensitively accommodated when organising meetings and other activities of the GPC Community.

## **5. Individual Rights**

### **5.1 The right to be informed**

***{Precised from Arts: 12-14}***

When collecting personal information the GPC Community will provide to the data subject free of charge, a Privacy Policy written in clear and plain language which is concise, transparent, intelligible and easily accessible containing the following information:



- ☐ Identity and contact details of the controller
  - ☐ Purpose of the processing and the lawful basis for the processing
  - ☐ The legitimate interests of the controller or third party, where applicable
  - ☐ Categories of personal data;  
**Not applicable if the data are obtained directly from the data subject**
  - ☐ Any recipient or categories of recipients of the personal data
  - ☐ Details of transfers to third country and safeguards
  - ☐ Retention period or criteria used to determine the retention period
  - ☐ The existence of each of data subject's rights
  - ☐ The right to withdraw consent at any time, where relevant
  - ☐ The right to lodge a complaint with a supervisory authority
  - ☐ The source the personal data originates from and whether it came from publicly accessible sources  
**Not applicable if the data are obtained directly from the data subject**
  - ☐ Whether the provision of personal data is part of a statutory or contractual requirement or obligation and possible consequences of failing to provide the personal data  
**Not applicable if the data are NOT obtained directly from the data subject**
  - ☐ The existence of automated decision making, including profiling and information about how decisions are made, the significance and the consequences.
- In the case of data obtained directly from the data subject, the information will be provided at the time the data are obtained.
- In the case that the data are not obtained directly from the data subject, the information will be provided within a reasonable period of the GPC Community having obtained the data (within one month), **or**,  
if the data are used to communicate with the data subject, at the latest, when the first communication takes place; **or**  
if disclosure to another recipient is envisaged, at the latest, before the data are disclosed.

## **5.2 The right of access**

**{Précised from Art:15}**

The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him/her are being processed, and, where that is the case, access to his/her personal data.

### **5.3 The right to rectification**

**{Précised from Art:16}**

The data subject shall have the right to require the controller without undue delay to rectify any inaccurate or incomplete personal data concerning him/her.

### **5.4 The right to erase {The right to be forgotten}**

**{Précised from Art:17}**

Except where the data are held for purposes of legal obligation or public task (4.3 or 4.5) the data subject shall have the right to require the controller without undue delay to erase any personal data concerning him/her.

### **5.5 The right to restrict processing**

**{Précised from Art:18}**

Where there is a dispute between the data subject and the Controller about the accuracy, validity or legality of data held by the GPC Community the data subject shall have the right to require the controller to cease processing the data for a reasonable period of time to allow the dispute to be resolved.

### **5.6 The right to data portability**

**{Précised from Art:20}**

Where data are held for purposes of consent or contract (4.1 or 4.2) the data subject shall have the right to require the controller to provide him/her with a copy in a structured, commonly used and machine-readable format of the data which he/she has provided to the controller, and have the right to transmit those data to another controller without hindrance.

### **5.7 The right to object**

**{Précised from Art:21}**

- a) The data subject shall have the right to object, on grounds relating to his or her particular situation, at any time to processing of personal data concerning him/her which is based Public Task or Legitimate Interest (4.5 or 4.6), including profiling based on those provisions. The controller shall no longer process the personal data unless the controller demonstrates compelling legitimate grounds for the processing which override the interests, rights and freedoms of the data subject or for the establishment, exercise or defense of legal claims.
- b) Where personal data are processed for direct marketing purposes, the data subject shall have the right to object at any time to processing of personal data concerning him/her for such marketing, which includes profiling to the extent that it is related to such direct marketing.
- c) Where the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.
- d) At the latest at the time of the first communication with the data subject, the right referred to in paragraphs a) and d) shall be explicitly brought to the attention of the data subject and shall be presented clearly and separately from any other information.

### **5.8 Rights in relation to automated decision making and profiling** *{Précised from Art:22}*

Except where it is: a) based on the data subject's explicit consent, or b) necessary for entering into, or performance of, a contract between the data subject and a data controller; the data subject shall have the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him/her or similarly significantly affects him/her.

## **Operational Policies and Procedures**

### **6. Operational Policies & Procedures – The Context**

The GPC Community is a small non-profit organisation holding just a small amount of non-sensitive data on a small number of people.

The Administrators understand and accept their responsibility under the UK General Data Protection Regulation (UK-GDPR) to hold all personal data securely and use it only for legitimate purposes with the knowledge and approval of the data subjects.

By the following operational policies and procedures the Administrators undertake to uphold the principles and requirements of the UK-GDPR in a manner which is proportionate to the nature of the personal data being held by the GPC Community. The policies are based on the Administrators' assessment, in good faith, of the potential impacts on both the GPC Community and its data subjects of the personal data held by the GPC Community being stolen, abused, corrupted or lost.

### **7. Personnel**

#### **7.1 Data Protection Officer**

In the considered opinion of the Administrators the scope and nature of the personal data held by the GPC Community is not sufficient to warrant the appointment of a Data Protection Officer.

Accordingly, no Data Protection Officer is appointed.

#### **7.2 Data Controller**

The Administrators appoint **Aster Thackery** as the Data Controller for the GPC Community.

#### **7.3 Data Processor**

The Administrators will appoint at least 2 and not more than 5 of its number, or other appropriate persons, to be the Data Processors for the GPC Community.

The GPC Community will not knowingly outsource its data processing to any third party (eg: Google G-Suite, Microsoft OneDrive) except as provided for in the section "Third Party Access to Data".



## **7.4 Access to Data**

Except where necessary to pursue the legitimate purposes of the GPC Community, only the Data Processors shall have access to the personal data held by the GPC Community.

## **7.5 Training**

The Administrators and Data Processors will periodically undergo appropriate training commensurate with the scale and nature of the personal data that the GPC Community holds and processes under the UK-GDPR.

# **8. Collecting & Processing Personal Data**

The GPC Community collects a variety of personal data commensurate with the variety of purposes for which the data are required in the pursuit of its non-profitable objects.

All personal data will be collected, held and processed in accordance with the relevant Data Privacy Notice provided to data subjects as part of the process of collecting the data.

A Data Privacy Notice will be provided, or otherwise made accessible, to all persons on whom the GPC Community collects, holds and processes data covered by the UK-GDPR. The Data Privacy Notice provided to data subjects will detail the nature of the data being collected, the purpose(s) for which the data are being collected and the subjects rights in relation to the GPC Community's use of the data and other relevant information in compliance with the prevailing UK-GDPR requirements.

# **9. Information Technology**

## **9.1 Data Protection by Design/Default**

Inasmuch as:

- a) none of the GPC Community's volunteer Administrators are data protection professionals;
- b) it would be a disproportionate use of funds to employ a data protection professional, given the scale and nature of the personal data held by the GPC Community;

the Administrators will seek appropriate professional advice commensurate with its data protection requirement whenever:

- c) they are planning to make significant changes to the ways in which they process personal data;
- d) any material changes to the UK-GDPR are proposed or have been made;

which might adversely compromise the GPC Community's legitimate processing of personal data covered by the UK-GDPR.

## **9.2 Data Processing Equipment**

The scale and nature of the personal data held by the GPC Community is not sufficient to justify the GPC Community purchasing dedicated computers for the processing of personal data.



The Data Controller & Data Processors will keep a register of

- a) the location of all removable devices used for the storage and processing of personal data;
- b) each occasion when the data on each device were accessed or modified and by whom.

### **9.3 Data Processing Location**

Data Processors shall only process the GPC Community's personal data in a secure location, and not in any public place, eg: locations where the data could be overlooked by others, or the removable data storage devices would be susceptible to loss or theft.

### **9.4 Data Backups**

To protect against loss of data by accidental corruption of the data or malfunction of a removable data storage device (including by physical damage), the GPC Community's personal data may be backed up periodically. Backup copies of the data shall be held in separate secure locations.

## **10. Data Subjects**

### **10.1 The Rights of Data Subjects**

In compliance with the UK-GDPR the GPC Community will give data subjects the following rights. These rights will be made clear in the relevant Data Privacy Notice provided to data subjects:

- ☐ the right to be informed;
- ☐ the right of access;
- ☐ the right to rectification;
- ☐ the right of erasure {LO}
- ☐ the right to restrict processing;
- ☐ the right to data portability; {LO} {LI}
- ☐ the right to object; {SC} {Co} {LO}
- ☐ the right not to be subjected to automated decision making, including profiling.

The above rights are not available to data subjects when the legal basis on which the GPC Community is holding & processing their data are:

{SC} Subject Consent; {Co} Contractual obligation; {LO} Legal Obligation; {LI} Legitimate Interest



## **10.2 Rights of Access, Rectification and Erasure**

Data subjects will be clearly informed of their right to access their personal data and to request that any errors or omissions be corrected promptly.

Such access shall be given and the correction of errors or omissions shall be made free of charge provided that such requests are reasonable and not trivial or vexatious.

There is no prescribed format for making such requests provided that:

- a) the request is made in writing, signed & dated by the data subject (or their legal representative);
- b) the data claimed to be in error or missing are clearly and unambiguously identified;
- c) the corrected or added data are clear and declared by the subject to be complete and accurate.

It will be explained to subjects who make a request to access their data and/or to have errors or omissions corrected, or that their data be erased, that, while their requests will be actioned as soon as is practical there may be delays where the appropriate volunteers or staff to deal with the request do not work on every normal weekday.

Where a data subject requests that their data be rectified or erased the Data Controller and Data Processor will ensure that the rectifications or erasure will be applied to all copies of the subject's personal data including those copies which are in the hands of a Third Party for authorised data processing.

## **10.3 Right of Portability**

the GPC Community will only provide copies of personal data to the subject (or the subject's legal representative) on written request.

the GPC Community reserves the right either:

- a) to decline requests for portable copies of the subject's personal data when such requests are unreasonable (*ie*: excessively frequent) or vexatious;  
or
- b) to make a reasonable charge for providing the copy.

## **10.4 Data Retention Policy**

Personal data shall not be retained for longer than:

- a) In the case of data held by subject consent: the period for which the subject consented to the GPC Community holding their data;
- b) in the case of data held by legitimate interest of the GPC Community: the period for which that legitimate interest applies. For example: in the case of data subjects who held a role, such as a volunteer, with the GPC Community the retention period is that for which the GPC Community reasonably has a legitimate interest in being able to identify that individual's role in the event of any retrospective query about it;
- c) in the case of data held by legal obligation: the period for which the GPC Community is legally obliged to retain those data.

the GPC Community shall regularly – not less than every 6 months – review the personal data which it holds and remove any data where retention is no longer justified. Such removal shall be made as soon as is reasonably practical, and in any case no longer than

20 working days (of the relevant Data Processor) after retention of the data was identified as no longer justified.

## 11. Privacy Impact Assessment

### 11.1 *Administrators' Data*

The volume of personal data is very low

The sensitivity of the data is low-moderate

The risk of data breach is small as the data are rarely used

**Overall impact: LOW**

### 11.2 *Volunteers'/Members' Data*

The volume of personal data is low

The sensitivity of the data is low: the most sensitive data being an e-mail address

The risk of data breach is small – primarily the accidental disclosure of names & e-mail addresses.

**Overall impact: LOW**

### 11.3 *Supporters' & Enquirers' Data*

The volume of personal data is low

The sensitivity of the data is low: the most sensitive data being an e-mail address

The risk of data breach is small – primarily the accidental disclosure of names & e-mail addresses.

**Overall impact: LOW**

## 12. Third Party Access to Data

Under no circumstance will the GPC Community share with, sell or otherwise make available to Third Parties any personal data except where it is necessary and unavoidable to do so in pursuit of its charitable objects as authorised by the Data Controller.

Whenever possible, data subjects will be informed in advance of the necessity to share their personal data with a Third Party in pursuit of the GPC Community's objects.

Before sharing personal data with a Third Party the GPC Community will take all reasonable steps to verify that the Third Party is, itself, compliant with the provisions of the UK-GDPR and confirmed in a written contract. The contract will specify that:

- ☐ the GPC Community is the owner of the data;
- ☐ The Third Party will hold and process all data shared with it exclusively as specified by the instructions of the Data Controller;
- ☐ The Third Party will not use the data for its own purposes;



- The Third Party will adopt prevailing industry standard best practice to ensure that the data are held securely and protected from theft, corruption or loss;
- The Third Party will be responsible for the consequences of any theft, breach, corruption or loss of the GPC Community's data (including any fines or other penalties imposed by the Information Commissioner's Office) unless such theft, breach, corruption or loss was a direct and unavoidable consequence of the Third Party complying with the data processing instructions of the Data Controller
- The Third Party will not share the data, or the results of any analysis or other processing of the data with any other party without the explicit written permission of the Data Controller;
- The Third Party will securely delete all data that it holds on behalf of the GPC Community once the purpose of processing the data has been accomplished.
- the GPC Community does not, and will not, transfer personal data out of the UK.

## 13. Data Breach

In the event of any data breach coming to the attention of the Data Controller the Administrators will immediately notify the Information Commission's Office.

In the event that full details of the nature and consequences of the data breach are not immediately accessible (eg: because Data Processors do not work on every normal weekday) the Administrators will bring that to the attention of the Information Commissioner's Office and undertake to forward the relevant information as soon as it becomes available.

## 14. Privacy Policy & Privacy Notices

The GPC Community will have a Privacy Policy and appropriate Privacy Notices which it will make available to everyone on whom it holds and processes personal data, in accordance with 5.1.

In the case of data obtained directly from the data subject, the Privacy Notice will be provided at the time the data are obtained.

In the case that the data are not obtained directly from the data subject, the Privacy Notice will be provided within a reasonable period of the GPC Community having obtained the data (within one month), **or**,

if the data are used to communicate with the data subject, at the latest, when the first communication takes place; **or**

if disclosure to another recipient is envisaged, at the latest, before the data are disclosed.



## Change Record

| Date of Change: | Changed By:    | Comments:                             |
|-----------------|----------------|---------------------------------------|
| 02/07/2024      | Aster Thackery | Policy approved by the Administrators |
|                 |                |                                       |
|                 |                |                                       |
|                 |                |                                       |